

SH01

Return of allotment of shares

You can use the WebFiling service to file this form online.
Please go to www.companieshouse.gov.uk

✓ **What this form is for**
You may use this form to give
notice of shares allotted following
incorporation

✗ **What this form is NOT for**
You cannot use this form to give
notice of shares taken by subscrip
on formation of the company or
for an allotment of a new class o
shares by an unlimited company

THURSDAY



A11 *A50IEAFS* #212
11/02/2016
COMPANIES HOUSE

1 Company details

Company number 0 9 9 2 8 3 4 5

Company name in full Caelius Midco Limited

→ **Filling in this form**
Please complete in typescript or in
bold black capitals

All fields are mandatory unless
specified or indicated by *

2 Allotment dates ①

From Date d 0 3 m 0 2 y 2 0 y 1 6
To Date d d m m y y y y

① **Allotment date**
If all shares were allotted on the
same day enter that date in the
'from date' box. If shares were
allotted over a period of time,
complete both 'from date' and 'to
date' boxes

3 Shares allotted

Please give details of the shares allotted, including bonus shares
(Please use a continuation page if necessary)

② **Currency**
If currency details are not
completed we will assume currency
is in pound sterling

Class of shares (E.g. Ordinary/Preference etc.)	Currency ②	Number of shares allotted	Nominal value of each share	Amount paid (including share premium) on each share	Amount (if any) unpaid (including share premium) on each share
A Ordinary	£	15959	1 00	1 00	
B Ordinary	£	4040	1 00	1 00	
Preference	£	1322044	0 000005	1 00	

If the allotted shares are fully or partly paid up otherwise than in cash, please
state the consideration for which the shares were allotted

Continuation page
Please use a continuation page if
necessary

Details of non-cash
consideration

If a PLC, please attach
valuation report (if
appropriate)

B Ordinary Shares - £4,040 satisfied by way of the issue of 4,040 B ordinary
shares of £1 00 each in the capital of the Company at a subscription price of
£1 00 each as part consideration payable by the Company to the sellers for the
acquisition by the Company of unsecured loan notes in the capital of Caelius
Midco 2 Limited

Preference Shares - £1,322,044 satisfied by way of the issue of 1,322,044
preference shares of £0 000005 each in the capital of the Company at a
subscription price of £1 00 each as consideration payable by the Company to the
sellers for the acquisition by the Company of 1,322,044 preference shares of
£0 000005 each in the capital of Caelius Midco 2 Limited

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Statement of capital

Section 4 (also **Section 5** and **Section 6**, if appropriate) should reflect the company's issued capital at the date of this return

4**Statement of capital (Share capital in pound sterling (£))**

Please complete the table below to show each class of shares held in pound sterling. If all your issued capital is in sterling, only complete **Section 4** and then go to **Section 7**

Class of shares (E.g. Ordinary/Preference etc.)	Amount paid up on each share ①	Amount (if any) unpaid on each share ①	Number of shares ②	Aggregate nominal value ③
A Ordinary	1 00	0 00	15960	£ 15,960.00
B Ordinary	1 00		4040	£ 4,040.00
Preference	1 00		1322044	£ 6.61022
				£
Totals			1342044	£ 20006.61022

5**Statement of capital (Share capital in other currencies)**

Please complete the table below to show any class of shares held in other currencies.
Please complete a separate table for each currency.

Currency				
Class of shares (E g Ordinary / Preference etc)	Amount paid up on each share ①	Amount (if any) unpaid on each share ①	Number of shares ②	Aggregate nominal value ③
Totals				

Currency				
Class of shares (E g Ordinary/Preference etc)	Amount paid up on each share ①	Amount (if any) unpaid on each share ①	Number of shares ②	Aggregate nominal value ③
Totals				

6**Statement of capital (Totals)**

	Please give the total number of shares and total aggregate nominal value of issued share capital	④ Total aggregate nominal value Please list total aggregate values in different currencies separately. For example £100 + €100 + \$10 etc
Total number of shares	1342044	
Total aggregate nominal value ④	£20006.61022	

① Including both the nominal value and any share premium

② Total number of issued shares in this class

③ E.g. Number of shares issued multiplied by nominal value of each share

Continuation Pages

Please use a Statement of Capital continuation page if necessary

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7 Statement of capital (Prescribed particulars of rights attached to shares)

Please give the prescribed particulars of rights attached to shares for each class of share shown in the statement of capital share tables in **Section 4** and **Section 5**

Class of share	A Ordinary, B Ordinary, Preference, Deferred
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Prescribed particulars ①	See continuation pages
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Class of share	
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Prescribed particulars ①	
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Class of share	
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Prescribed particulars ①	
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① Prescribed particulars of rights attached to shares

The particulars are

- a particulars of any voting rights, including rights that arise only in certain circumstances,
- b particulars of any rights, as respects dividends, to participate in a distribution,
- c particulars of any rights, as respects capital, to participate in a distribution (including on winding up), and
- d whether the shares are to be redeemed or are liable to be redeemed at the option of the company or the shareholder and any terms or conditions relating to redemption of these shares

A separate table must be used for each class of share

Continuation page

Please use a Statement of Capital continuation page if necessary

8 Signature

I am signing this form on behalf of the company

Signature

Signature

X Mark Lyons X

This form may be signed by
 Director ②, Secretary, Person authorised ③, Administrator, Administrative receiver,
 Receiver, Receiver manager, CIC manager

② Societas Europaea

If the form is being filed on behalf of a Societas Europaea (SE) please delete 'director' and insert details of which organ of the SE the person signing has membership

③ Person authorised

Under either section 270 or 274 of the Companies Act 2006

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7	Statement of capital (Prescribed particulars of rights attached to shares)	
Class of share	A Ordinary	
Prescribed particulars	(A) Subject to articles 7 3 3 and 7 3 4-7 3 7 of the Company's articles of association, the A ordinary shares shall entitle any holder thereof to receive notice of, and to attend and speak, at any general meeting and on a poll each A ordinary share shall carry one vote the A ordinary shareholders (as a class) shall be entitled to cast 100% of the voting rights that are not capable of being cast by the B ordinary shareholders pursuant to paragraph 7 3 1 (b) of the Company's articles of association and where there is more than one holder of A ordinary shares each holder shall be entitled to cast that proportion of the voting rights capable of being cast by the A ordinary shareholders that his holding of A ordinary shares bears to the total number of A ordinary shares in issue B) Subject to articles 7 2 2 and 7 2 3 of the Company's articles of association (a) the capital and assets of the Company on a winding-up or other return of capital available for distribution, and (b) the proceeds of any Sale (as defined in the Company's articles of association), shall be distributed amongst the ordinary shareholders as follows (1) in paying to each holder of the B ordinary shares an amount equal to the B Share Subscription Amount (as defined in the Company's articles of association) per B ordinary share and any B Share Dividends (as defined in the Company's articles of association) accrued but unpaid on the B ordinary shares held by the relevant holder and, if there is a shortfall of proceeds available to satisfy such payments in full, the proceeds shall be shared among the holders of the ordinary shares pro rata according to the number of ordinary shares held, (11) from the balance (if any) of the proceeds remaining after the payment of those sums referred to in article 7 2 1(i) of the Company's articles of association, in paying this to the holders of the A ordinary shares pro rata according to the number of A ordinary shares held For the avoidance of doubt, to the extent there is more than one distribution to be paid by the Company, the holders of B Ordinary Shares shall only be entitled to a payment in accordance with Article 7 2 1(i) once, following which all further distributions shall be paid to the holders of A Ordinary Shares Upon a Sale, those ordinary shares not acquired by the relevant purchaser(s) shall not be entitled to any allocation of proceeds pursuant to article 7 2 1 of the Company's articles of association	

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7	Statement of capital (Prescribed particulars of rights attached to shares)	
Class of share	A Ordinary	
Prescribed particulars	(C) Any profits which the Directors lawfully determine to distribute to the A ordinary shareholders in respect of any financial year, after declaration of any B Share Dividends (as defined in the Company's articles), shall be distributed amongst the A ordinary shareholders (in respect of their A ordinary shares only) pro rata and pari passu according to the number of A ordinary shares held by each of them (D) The A ordinary shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (subject to the terms of the Investment Agreement and the Finance Documents (each as defined in the Company's articles of association)) shall be authorised to determine the terms, conditions and manner of redemption of such shares	

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7 Statement of capital (Prescribed particulars of rights attached to shares)

Class of share	B Ordinary	
Prescribed particulars	(A) Subject to Articles 7 3 3 and 7 3 4-7 3 7 of the Company's articles of association, the B ordinary shares shall entitle any holder thereof to receive notice of, and to attend and speak, at any general meeting and on a poll each B ordinary share shall carry one vote save where a Leaver or Permitted Transferee (each as defined in the Company's articles of association) of a Leaver holds any interest in any B ordinary share, each B ordinary shareholder shall be entitled to cast 5% of the total number of voting rights capable of being cast by all holders of ordinary shares irrespective of the number of B ordinary shares held by such B ordinary shareholder The maximum number of B shareholders is 4 The only acts or omissions of the Company which will require a class consent of the B ordinary shares shall be any deletion or variation of article 7 3 1(b) of the Company's articles (save that no class consent shall be required where such deletion or variation results from the operation of clause 18 of the Investment Agreement (as defined in the Company's articles) or upon any interest in the B ordinary shares being held by Leavers or Permitted Transferees of Leavers), and such class consent of the B ordinary shares may be given by the holders of a majority of the B ordinary shares then in issue (excluding any B ordinary shares in which any interest is held by any Leaver or any Permitted Transferee of a Leaver to which article 7 3 5 applies) The provisions of article 7 3 5 of the Company's articles shall apply (a) if, at any time without Investor Director Consent (as defined in the Company's articles), any holder of B ordinary shares has transferred shares or any interest therein or any other security or interest therein in any member of the Group (as defined in the Company's articles) in breach of any provision of the Company's articles, the Topco Articles or the Nominee Agreement (each as defined in the Investment Agreement (as defined in the Company's articles)) or the B Loan Note Transfer Agreement (as defined in the Investment Agreement), (b) if, at any time without Investor Director Consent, any holder of B ordinary shares is in material breach of any provision of the Company's articles and/or the Investment Agreement and/or the Nominee Agreement and/or the B Loan Note Transfer Agreement or any former holder of B ordinary shares is in material breach of any provision of the Investment Agreement	

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7	Statement of capital (Prescribed particulars of rights attached to shares)	
Class of share	B Ordinary	
Prescribed particulars	If any of the circumstances stated in article 7 3 4 of the Company's articles have occurred in respect of the B ordinary shareholder referred to in article 7 3 4 of the Company's articles (the "Defaulting Person"), then, unless otherwise agreed in writing by the holder of the majority of A ordinary shares (a) the shares in which such Defaulting Person holds any legal or beneficial interest or to which he is entitled pursuant to the Nominee Agreement or otherwise, and (b) any shares (or interests therein) formerly held by such Defaulting Person which have been transferred either in breach of the provisions of the Company's articles of association or the Nominee Agreement, shall cease to entitle the holder of such shares (or any proxy, attorney or other representative) to receive notice of or to attend and vote (whether on a show of hands or on a poll) at any general meeting or at any separate class meeting of the Company (and as such these shares will be deemed to be non-voting in respect of any written resolutions, written class consents or any other written consents required in respect of a member's equity investment in the Group) or (ii) be entitled to receive any further securities issued by way of rights issue (or otherwise) from the date of any breach referred to at article 7 3 4(a) or 7 3 4(b) of the Company's articles Each holder of the shares referred to in the foregoing provisions of article 7 3 5 of the Company's articles hereby appoints as his attorney and agent any person nominated by the holders of the majority of the A ordinary shares to take any actions in his name and on his behalf to implement all or any of the provisions of article 7 3 5 of the Company's articles	

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7 Statement of capital (Prescribed particulars of rights attached to shares)

Class of share	B Ordinary
Prescribed particulars	(B) Subject to articles 7 2 2 and 7 2 3 of the Company's articles of association (a) the capital and assets of the Company on a winding-up or other return of capital available for distribution, and (b) the proceeds of any Sale shall be distributed amongst the ordinary shareholders as follows (1) in paying to each holder of the B ordinary shares an amount equal to the B Share Subscription Amount per ordinary share and any B Share Dividends accrued but unpaid on the B ordinary shares held by the relevant holder and, if there is a shortfall of proceeds available to satisfy such payments in full, the proceeds shall be shared among the holders of the ordinary shares pro rata according to the number of ordinary shares held For the avoidance of doubt, to the extent there is more than one distribution to be paid by the Company, the holders of B ordinary shares shall only be entitled to a payment in accordance with article 7 2 1(1) of the Company's articles once, following which all further distributions shall be paid to the holders of A ordinary shares For the avoidance of any doubt, subject always to article 7 5 of the Company's articles, the only value which a B ordinary share shall be entitled to upon its realisation shall be (and shall not exceed) the amount determined and payable in accordance with and pursuant to the foregoing provisions Upon a Sale, those ordinary shares not acquired by the relevant purchaser(s) shall not be entitled to any allocation of proceeds pursuant to article 7 2 1 of the Company's articles (C) In respect of any profits which the Directors lawfully determine to distribute in respect of any financial year, the B ordinary shares shall confer on the B ordinary shareholders the right to receive in respect of each B ordinary share a preferential cash dividend at the rate per annum equal to the Prescribed Rate (as defined in the Company's articles) multiplied by the B Share Subscription Amount (as defined in the Company's articles) The B Share Dividends shall, with effect from the date of issue of the B ordinary shares (the "Start Date"), accrue from day to day on an annual basis (on the basis of a 365 or 366 day year as appropriate) (each a "B Share Dividend Period") The payment date (or dates) of the B Share Dividends shall be determined by the Company's board (with the prior approval of the board of directors of Caelius Topco Limited) Subject to the availability of the Company and the approval of the Company's board (with the prior approval

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7 Statement of capital (Prescribed particulars of rights attached to shares)

Class of share	B Ordinary
Prescribed particulars	of the board of Caelius Topco Limited), the B Share Dividends shall be payable out of the distributable profits of the Company without any resolution of the Company in general meeting (D) The B ordinary shares may be issued on the terms that they are, or at the option of the Company or the holder are liable, to be redeemed and the Company's board (subject to the terms of the Investment Agreement and the Finance Documents (each as defined in the Company's articles of association)) shall be authorised to determine the terms, conditions and manner of redemption of such shares (E) On a Conversion Event (as defined in the Company's articles), each of the B ordinary shares held by the relevant Leaver (or any Permitted Transferee thereof) or the Nominee (or any Permitted Transferee thereof) (each as defined in the Company's articles) on his behalf in issue on the Conversion Event shall be automatically converted on such date into deferred shares (with such nominal value which shall be equal to the nominal value of a B ordinary share) on a one for one basis and the holder of such converted B ordinary shares shall cease to be entitled to any of the accrued or future rights set out in the Company's articles (including but not limited to any of the accrued or future rights in respect of income and/or capital) The conversion shall be automatic and mandatory and shall not require further authority than is contained in the Company's articles On the date on which conversion takes place or forthwith thereafter, the holder of deferred shares resulting from the conversion shall send to the Company his share certificate in respect of the B ordinary shares converted No share certificate will be issued in respect of the deferred shares The Company shall on the Conversion Date or forthwith thereafter enter the holder of the B ordinary shares so converted in the register of members of the Company as the holder of deferred shares (if appropriate) The creation or issue of deferred shares shall be deemed to confer irrevocable authority on the Company's board at any time after their creation or issue to appoint any person (with Investor Consent (as defined in the Company's articles of association)) to execute or give on behalf of the holder of those shares a transfer of them to such person or persons as the Company or the Company's board may determine

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7 Statement of capital (Prescribed particulars of rights attached to shares)

Class of share	Preference
Prescribed particulars	(A) Preference shares shall not entitle the holder thereof to attend or vote at any general meeting of the Company (B) No dividend may be paid in respect of any preference share (C) In a winding-up of the Company from the assets of the Company available to the holders of shares the holders of preference shares (in respect of their preference shares only) shall receive in priority to any payment in respect of any other share an amount per preference share equal to (i) £1 (the "Principal Value") plus (ii) a sum equal to 8% per annum which shall be deemed to accrue on the Outstanding Value (as defined below) from day to day on the basis of a 365 day year (or a 366 day year in the case of a leap year) from the date of issue of the preference share until the earliest of (and including) the date of redemption of the relevant preference share and the date of winding-up of the Company. The Premium (as defined below) (if any) which has accrued as at each anniversary of the date of adoption of the Company's articles will be compounded with the Principal Value (as defined in the Company's articles) outstanding as at such anniversary (and such Principal Value plus any such compounded sums from time to time shall be the "Outstanding Value"). The total sum calculated under (ii) (including any compounded sums (but excluding the Principal Value)) shall be deemed to be the "Premium" for the purpose of the Company's articles. Upon payment of the amounts referred to in article 7.2.3(a) of the Company's articles the preference shares shall not be entitled to any further amount of capital or distribution. If the assets of the Company available to shareholders are less than the amount which would be due to all preference shares under the foregoing provisions of article 7.2.3(a) of the Company's articles (the "Preference Proceeds"), those Preference Proceeds will be distributed amongst the preference shareholders pro rata by reference to the number of preference shares held. In the event of a Sale, the holders of preference shares (in respect of their preference shares only) shall receive from the proceeds of the Sale available in respect of the shares being sold in priority to any other share an amount per preference share equal to the Principal Value plus the Premium (to be calculated up to (and including) the date of completion of the Sale) and shall not be entitled to any further participation in the proceeds of the Sale. If the proceeds of the Sale or the Drag Sale (as defined in the Company's articles) available in respect of the share being sold are less than the amount which would be due to all preference shares under the foregoing provisions of article 7.2.3(b) of the Company's articles (the "Preference Proceeds"), those Preference Proceeds will be distributed amongst the preference shareholders pro rata by reference to the number of preference shares held.

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7	Statement of capital (Prescribed particulars of rights attached to shares)	
Class of share	Preference	
Prescribed particulars	As between the holders of preference shares, the assets or proceeds due to them under article 7 2 3(a) or (b) of the Company's articles(as the case may be) shall be allocated across all of the preference shares pari passu and pro rata to the number of preference shares held by each holder (D) Subject to the Companies Act 2006 and of every other statute for the time being in force concerning companies and affecting the Company, the preference shares may be redeemed in full at any time after the day following the date of adoption of the Company's articles by the Company giving notice of the redemption to the relevant holder(s) of preference shares (the "Redemption Notice") Those shares shall be redeemed immediately following the issue of the Redemption Notice(s) by the Company (the "Redemption Date") On any Redemption Date the Company shall pay to each registered holder of preference shares the amount payable in respect of such redemption On receipt of that amount, each such holder shall surrender to the Company the certificate for the shares that are to be redeemed (or an indemnity in a form reasonably satisfactory to the Company's board in respect of any lost share certificate) to be cancelled If any certificate (or indemnity) so surrendered includes any shares that are not redeemable at that time, the Company shall issue a new share certificate for the balance of the shares not redeemable to the holder If there is more than one holder of preference shares, any redemption shall be made among such holders pro rata (as nearly as possible) to their respective holdings of preference shares	

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7	Statement of capital (Prescribed particulars of rights attached to shares)	
Class of share	Deferred	
Prescribed particulars	(A) The deferred shares shall not be entitled to any dividend or distribution, whether pursuant to the Company's articles of association or otherwise. Any such deferred shares shall not entitle the holders thereof to receive notice of or to attend or vote at any general meeting of the Company by virtue of their holdings of any such deferred shares. The holder of each deferred share has the right to receive, after all share capital on the Shares in issue has been repaid, £1 for every £100,000,000,000 of capital returned. (B) Subject to the provisions of the Companies Act 2006, the Company shall be entitled to repurchase the deferred shares for a sum of £1 in aggregate payable to each holder of such deferred shares.	

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Presenter information

You do not have to give any contact information, but if you do it will help Companies House if there is a query on the form. The contact information you give will be visible to searchers of the public record.

Contact name Sean Hedges

Company name Dickson Minto W.S.

Address 16 Charlotte Square

Post town Edinburgh

County/Region

Postcode E H 2 4 D F

Country

DX DX 199 Edinburgh

Telephone 0131 225 4455



Checklist

We may return the forms completed incorrectly or with information missing.

Please make sure you have remembered the following:

- ☐ The company name and number match the information held on the public Register
- ☐ You have shown the date(s) of allotment in section 2
- ☐ You have completed all appropriate share details in section 3
- ☐ You have completed the appropriate sections of the Statement of Capital
- ☐ You have signed the form



Important information

Please note that all information on this form will appear on the public record.



Where to send

You may return this form to any Companies House address, however for expediency we advise you to return it to the appropriate address below:

For companies registered in England and Wales:

The Registrar of Companies, Companies House,
Crown Way, Cardiff, Wales, CF14 3UZ
DX 33050 Cardiff

For companies registered in Scotland:

The Registrar of Companies, Companies House,
Fourth floor, Edinburgh Quay 2,
139 Fountainbridge, Edinburgh, Scotland, EH3 9FF
DX ED235 Edinburgh 1
or LP - 4 Edinburgh 2 (Legal Post)

For companies registered in Northern Ireland

The Registrar of Companies, Companies House,
Second Floor, The Linenhall, 32-38 Linenhall Street,
Belfast, Northern Ireland, BT2 8BG
DX 481 N R Belfast 1



Further information

For further information please see the guidance notes on the website at www.companieshouse.gov.uk or email enquiries@companieshouse.gov.uk

This form is available in an alternative format. Please visit the forms page on the website at www.companieshouse.gov.uk